WEB COPY

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED : 16.07.2026

CORAM:

THE HONOURABLE MRS.JUSTICE L.VICTORIA GOWRI

W.P.Crl.(MD)No.3915 of 2026

Alageswaran

... Petitioner

Vs

1. The State of Tamil Nadu Rep, By,
the Superintendent of Police,
O/o.The Superintendent of Police, Theni District.

2. The Deputy Superintendent Of Police,
O/o.The Deputy Superintendent of Police
Uthamapalayam, Theni District.

3. The Inspector of Police,
Ootaipatti Police Station, Ootaipatti,
Theni District.

... Respondents

PRAYER : Writ Petition filed under Article 226 of the Constitution of India for issuance of Writ of Mandamus, directing the Respondent No.3 to consider the Petitioner's representation dated on 08.07.2026 and conduct enquiry on the complaint lodged by the Petitioner under monitoring of 2nd respondent within the time stipulated by this Court.

For Petitioner : Mr.N.Arjunkumar

For Respondents : Mr.D.Rajaboopathy (R1 to R3)
Government Advocate (Crl.Side)

https://www.mhc.tn.gov.in/judis

WEB COPY

ORDER

This writ petition has been filed seeking for a direction to the third Respondent to consider the Petitioner's representation dated on 08.07.2026 and conduct enquiry on the complaint lodged by the Petitioner.

2. The learned counsel for the petitioner submitted that the petitioner had sent a representation seeking action against the persons, who had committed theft of his vehicle. However, no proper action was taken, and therefore, this petition was filed.

3.The learned Government Advocate (Crl.Side) appearing for the respondents submitted that they have received the representation of the petitioner and the enquiry is pending.

4. Heard the learned counsel on either side and carefully perused the materials before this Court.

5. Considering the facts and circumstances of this case, the third respondent police is directed to consider the petitioner's representation dated 08.07.2026 and conduct an enquiry in this regard, after issuing summons to the

https://www.mhc.tn.gov.in/judis

WEB COPY

parties concerned, under Section 41A of Cr.P.C / 35(3) of BNSS, and conclude the same, within a period of four weeks from the date of receipt of a copy of this order.

6. This writ petition is disposed with the above directions.

16.07.2026

NCC : Yes / No
Index : Yes / No
PNM

TO:-

1. The Superintendent of Police,
O/o.The Superintendent of Police, Theni District.

2. The Deputy Superintendent Of Police,
O/o.The Deputy Superintendent of Police
Uthamapalayam, Theni District.

3. The Inspector of Police,
Ootaipatti Police Station, Ootaipatti,
Theni District.

4. The Additional Public Prosecutor,
Madurai Bench of Madras High Court,
Madurai.

https://www.mhc.tn.gov.in/judis

WEB COPY

L.VICTORIA GOWRI, J.

PNM

ORDER IN
W.P.Crl.(MD)No.3915 of 2026

16.07.2026

https://www.mhc.tn.gov.in/judis